

****June 16, 2021****

****Sanction for Violation of GDPR****

The National Supervisory Authority completed, in June 2021, an investigation into the operator La Santrade S.R.L. and found a violation of the provisions of Article 83 paragraph (5) letter e) of the General Data Protection Regulation and a violation of the provisions of Article 83 paragraph (5) letter b) of the General Data Protection Regulation.

As such, the operator La Santrade S.R.L. was sanctioned administratively:

- with a fine in the amount of 9,839.4 lei (equivalent to 2,000 EURO) for the violation of Article 83 paragraph (5) letter e) of the General Data Protection Regulation, concerning the operator's obligation to provide the necessary information to the National Supervisory Authority;
- with a warning, for the violation of the provisions of Article 83 paragraph (5) letter b) of the General Data Protection Regulation, concerning the non-compliance with the rights of the data subject.

In the context of the investigation initiated following a complaint, La Santrade S.R.L. did not respond to the request for information addressed by the National Supervisory Authority in the exercise of its powers, thus violating the provisions of Article 83 paragraph (5) letter e) of the General Data Protection Regulation.

Furthermore, the National Supervisory Authority found that the operator had not adopted measures to ensure the effective exercise of the rights of the data subjects, which led to the non-resolution of the request from the data subject requesting the deletion of their personal data (a right provided for in Article 17 of the General Data Protection Regulation). In this context, it was found that the provisions of Article 12 paragraphs (2) and (3) of the General Data Protection Regulation were not respected.

Additionally, La Santrade S.R.L. was subjected to two corrective measures:

- the corrective measure to inform the data subject about the measures taken regarding the deletion of their data, collected without their express consent;
- the corrective measure to facilitate the exercise of the rights of the data subjects by providing valid contact details, including a functional email address, which are to be made public on the operator's website in the sections regarding personal data processing, privacy policy, and contact details.

****Legal and Communication Department****

****N.S.A.P.D.C.P.****